NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
SPECIAL BENCH (COURT- II)

C.A.(CAA)-15/ND/2023

IN THE MATTER OF SCHEME OF AMALGAMATION:

AMONGST

ABHIPRA TRADING PRIVATE LIMITED

... Applicant No. 1 /Transferor Company

AND

GRAPHIC RESEARCH CONSULTANTS INDIA PRIVATE LIMITED

... Applicant No. 2 /Transferor Company

AND

UNITED BUILDWELL PRIVATE LIMITED

... Applicant No. 3 /Transferor Company

AND

VINEETA TRADING PRIVATE LIMITED

... Applicant No. 4 /Transferor Company

AND

VIPUL EASTERN INFRACON PRIVATE LIMITED

... Applicant No. 5 /Transferor Company

WITH

VIPUL LIMITED

... Applicant No. 6/Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on 20.03.2023

Section: 230 to 232 of the Companies Act, 2013

CORAM:

SH. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)

SH. AVINASH KUMAR SRIVASTAVA, HON'BLE MEMBER (T)

PRESENT

For the Applicant **:** Adv. Monish Panda, Adv. Vikrant Rohilla, Adv. Anmol Jassal

ORDER

PER: SHRI. ASHOK KUMAR BHARDWAJ, MEMBER (J)

The pleas espoused in the captioned petition, filed jointly by Abhipra Trading Private Limited (Applicant Company No.1), Graphic Research Consultants India Private Limited (Applicant Company No.2), United Buildwell Private Limited (Applicant Company No.3), Vineeta Trading Private Limited (Applicant Company No.4), Vipul Eastern Infracon Private Limited (Applicant Company No.5), and Vipul Limited (Applicant Company No.6), herein jointly referred to as Applicant Companies, is for:- dispensing with requirement of holding and convening separate meetings of the Equity Shareholders of each of the Applicant Companies No. 1 to 5 and also for dispensing with requirement of publication of notices in relation to the said meetings, in view of the consent affidavits given by all the respective Equity Shareholders of the Applicant Companies No. 1 to 5; dispensing with requirement of holding and convening separate meetings of the Secured Creditors of each of Applicant Companies Nos. 1 to 5 and also for dispensing

with the requirement of publication of notices in relation to the said meetings, in view of the fact that there are NIL Secured Creditors in all the Applicant Companies No. 1 to 5; dispensing with requirement of holding and convening separate meetings of the Unsecured Creditors of each of the Applicant Companies Nos. 1 to 5 and also for dispensing with requirement of publication of notices in relation to the said meetings, in view of the consent affidavits given by all the respective Unsecured Creditors of the Applicant Companies No. 1 to 5; dispensing with requirement of holding and convening separate meetings of the Equity Shareholders, Secured Creditors and Unsecured Creditors of Applicant Company No.6 and also for dispensing with requirement of publication of notices in relation to the said meetings in view of the fact that all of the Applicant Companies No. 1 to 5 are directly or indirectly wholly owned subsidiaries of the Applicant Company No. 6 and that in terms of the said Scheme there would be no impact on the shareholders or creditors of the Applicant Company No.6.

2. We find that there is a Company Petition (IB-788/ND/2022) filed against Respondent No. 6 i.e. Vipul Limited, scheduled to be listed before the New Delhi Bench of NCLT on 27.03.2023. The fact has not been disclosed by the Applicants in the captioned petition. In the wake, the Application is released and is directed to be listed for fresh hearing on 27.03.2023.

Sd/-

(AVINASH KUMAR SRIVASTAVA)
MEMBER (T)

Sd/-

(ASHOK KUMAR BHARDWAJ)
MEMBER (J)